

AMERICAN FORK CITY COUNCIL
MAY 14, 2019
REGULAR SESSION MINUTES

ATTACHMENT

Members Present:

Bradley J. Frost	Mayor
Kevin Barnes	Council Member
Staci Carroll	Council Member
Barbara Christiansen	Council Member
Rob Shelton	Council Member
Clark Taylor	Council Member

Staff Present:

David Bunker	City Administrator
Camden Bird	Admin Analyst
Wendelin Knobloch	Associate Planner
Terilyn Lurker	City Recorder
Aaron Brems	Fire Chief
Kyle Maurer	Finance Officer
George Schade	IT Director
Timothy Merrill	Legal Counsel
Adam Olsen	Senior Planner
Darren Falslev	Police Chief
Derric Rykert	Parks and Recreation Director
Scott Sensanbaugher	Public Works Director

Also present: Dick and Nyla Colborn, Katelyn Pedrozaa, Joey Byington, Danene Adamson, John Woffinden, Jerry Edwards, Leann Powell, John Bradley, Christy Collard, Brian Blackhurst, Jerry & Cheryl Kite, Julie Bleazard, Coaches and Students from American Fork High School, Ken Berg, Ginger Romreill, and approximately 20 additional people.

The American Fork City Council held a public hearing in conjunction with a regular session on Tuesday, May 14, 2019, at the American Fork City Hall, located at 31 N. Church Street, commencing at 7:00 p.m.

PUBLIC HEARING

- The declaration of old communication devices and hot spots as surplus and to be disposed of. There were no comments.

- The declaration of two sets of bleachers, 20' each, as surplus and to be disposed of. There were no comments.

- Amendments to the City Ordinance regulating short-term rentals. Mayor Frost announced this public hearing would be held at the time the action item would be discussed.

REGULAR SESSION

1. Pledge of Allegiance; prayer by Pastor Dan Milligan; roll call.

Mayor Frost welcomed everyone to the meeting. Those present recited the Pledge of Allegiance and Pastor Dan Milligan offered a prayer. Roll call was taken.

2. Presentation of the HERO Award to the American Fork High School State Champions and declaring May 14, 2019, as American Fork High School State Champions Day.

Mayor Frost explained the HERO award was meant to recognize someone who made an impact in the community. He said they were proud to honor the High School students who had brought American Fork High School Eight State championships. He asked that as their names were called, they come forward.

Coach Cuff said they were thankful for the opportunity to be recognized. They were humbled to coach and teach young athletes. He recognized everyone involved that helped make the championships possible.

The High School fight song was performed.

3. Presentation by Utah Recreation & Parks Association Presentation of Awards to American Fork Fitness Center and Recreation. (Requested by Derric Rykert, Parks and Recreation)

Leann Powell and John Bradley were asked to present the awards. Ms. Powell explained they had peers nominate peers for the awards. She thanked the Mayor and Council for their cooperation and dedication.

The first award was from the Red Cross was the Gold Level Award for those who give over 1000 swim lessons. It was presented to Joey Byington. He also received a scholarship for training.

The next award was the Outstanding Young Professional award. This went to Katelyn Pedroza. Ms. Pedroza served on the board of directors and was part of the leadership academy. She was chosen for the program, and Ms. Pedroza was a leader in the program.

Ms. Powell recognized Derric Rykert. He served for three years when he was president. She said he was a great leader and appreciated his strategic thinking.

John Bradley said they loved their jobs and wanted to make life better for the residents. He was there to present a very prestigious award which multiple Cities applied. What stood out about American Fork was the City's commitment for excellent and creativity to fund their services. He invited the department members to take a picture.

Council Member Shelton thanked the basketball team for their efforts. He also thanked the recreation department. He noted Ms. Pedroza had done an excellent job in her position and ensured the softball games were umpired.

4. Twenty-minute public comment period - limited to two minutes per person.

Christy Collard, resident, thanked the Council for their efforts. She explained the sidewalks and crosswalks would be made safer around the Greenwood Elementary due to comments made at a previous meeting. The Mayor noted they would begin work on the cross walk this summer.

5. City Administrator's Report

Mr. Bunker commented he was pleased with the High School's accomplishments. He said he was also proud of the Recreation Department. He reported this week was police week and there was an open house at the Police Department on the 15th from 5-7:30. He said they had an outstanding department. He reported the Memorial Day Breakfast would be hosted by the Fire Department.

6. Council Reports

Council Member Christiansen thanked everyone and appreciated the work that went into the successes at the school and the recreation department. She said that she was proud to be an adopted Caveman.

Council Member Shelton thanked staff for working on concerns he had. He suggested they provide a written list of plans for Greenwood Elementary.

Council Member Barnes reported on the Memorial Day Breakfast stating that thousands were served last year. He said this was a great activity that supported the fire department. He reported the Memorial Day Program would be held at the American Fork Tabernacle at 11:00 am. The High School marching band would be present. The guest speaker would be Sargent Southard. He was a recently retired American Fork Police Officer.

Council Member Barnes stated that American Fork City was known for a great culture and the residents had done a lot of great things for the community.

Council Member Carroll reported she sent an email about the Lone Peak Business Alliance. This alliance is between Cedar Hills, Alpine, Highland, and American Fork. Thursday, May 2nd, they hosted a kick-off breakfast. Mayors from all four cities were present. She reported that the Chamber was currently working on Steel Days. She said the big show had a volunteer that wanted to make the festivities bigger than last year. She reported they would move the carnival to Art Dye Park. She reported the Miss American Fork Pageant would take place during Steel Days. This will become a kick-off event for Steel Days and the new royalty will ride in the parade. She reported they canceled the Soapbox Derby and added a few new events including a BBQ kickoff, a pickleball tournament, some library events, and perhaps, some historical home tours.

Council Member Carroll also reported she attended Valley Visioning that took place on April 18th. This was sponsored by the Association of Utah County Chambers. They have just completed phase 1 of a 3 phase process. This can be viewed online at valleyvisioning.org. Their biggest priority was water, transportation, and pollution.

She also mentioned the upcoming Chamber Golf Tournament which is a fundraiser for veterans and extended an invitation to the Council to participate.

Council Member Taylor said he was excited the awards presented that evening. He thanked everyone for their work and complimented the Recreation Department for the great work they perform for the citizens of American Fork. He thanked staff for their efforts to encourage residents to conserve water and urged these efforts to be ongoing. He encouraged continued water conservation.

7. Mayor's Report

Mayor Frost reported he was grateful to work with great people who are making American Fork great. He said the staff and Council were great people. He stated that he was pleased about the swearing in of four new officers to the American Fork Police Department. He paid tribute to Chief Falslev. He stated that 3 of the 4 recruits were attracted to American Fork because they wanted to work with Chief Falslev.

COMMON CONSENT AGENDA

(*Common Consent* is that class of Council action that requires no further discussion or which is routine in nature. All items on the Common Consent Agenda are adopted by a single motion unless removed from the Common Consent Agenda.)

1. Approval of the March 5, 2019 special session minutes
2. Approval of the revised March 19, 2019 work session minutes
3. Approval of the April 9, 2019 work session minutes
4. Approval of the April 16, 2019 special session, work session minutes
5. Approval of the authorization to release the Improvements Durability Retainer of \$5,971.00 for AFCC Plat J Amended, Lot 3, located at 197 North State Road.
6. Approval of the authorization to release the Improvements Durability Retainer of \$1,529.20 for Brailsford Duplex, located at 386 North 200 West.
7. Approval of the authorization to release the Improvements Durability Retainer of \$28,278.47 for Lakeside LDS Chapel, located at 239 East 1100 South.
8. Approval of the authorization to release the Improvements Durability Retainer of \$1425.00 for Old Mill Estates, located at 200 East 600 North.
9. Approval of the authorization to release the Improvements Durability Retainer of \$3,156.76 for Z-Act Subdivision, located at 109 South 200 East, American Fork, Utah.

It was noted there were minor corrections to the minutes.

Council Member Taylor moved to approve the common consent agenda with the corrections to the minutes. Council Member Carroll seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Staci Carroll, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

ACTION ITEMS

1. Ratification of City payments (April 9, 2019 to May 7, 2019) and approval of purchase requests over \$25,000.

Council Member Taylor moved to approve the City bills for payment and approval of purchase requests over \$25,000. Council Member Barnes seconded the motion.

Council Member Carroll explained this included one additional item sent out. She shared a story about an accident that occurred a few days ago involving one of the police officers where the officer was at a stop sign when a car turned the corner and hit the patrol car head on. Luckily no one was seriously injured.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

2. Review and action on the approval of an ordinance amending Section 17.5.134 relating to accessory apartments and creating Chapter 05.41 regulating short term rentals in American Fork City.

John Woffinden, of the Planning Commission, commented that he voted against this ordinance. This was the worst ordinance he had seen. He thought it would contaminate residential areas. He noted there were several homes in his neighborhood that had illegal apartments and this ordinance would only make things worse. He said that enforcement was extremely difficult.

Brian Blackhurst, resident, said he lived behind a short-term rental. He explained the people living there were disturbing and there was no one to call to enforce the ordinance. He said this was a problem and suggested imposing limitations on short-term rentals. He noted the people renting the homes did not live in American Fork and did not care about the disturbances they created.

Jerry Edwards, resident, said he agreed with the previous speakers. He said he was in favor of the ordinance. He suggested they create more restrictions to the ordinance in the future. He noted there were some residents that abided by the rules and did not deserve to be punished. He commented there had been issues with parking and this needed to be addressed. He said they should consider the property owner's rights to rent their property.

Council Member Carroll asked if he would prefer no short-term rentals. Mr. Edwards responded he thought the ordinance was a compromise. He thought there should be areas where short-term rentals were not allowed.

Council Member Shelton commented he thought Mr. Edwards did not want the rentals in his area. Mr. Edwards commented he thought the ordinance was partially what they wanted but they needed to make more restrictions.

Cheryl Kite, resident, commented she was retiring from Oklahoma. She said it was unfair the neighbors were turning their homes into hotels. She explained she did not know them, and it was not safe. She said she was concerned about the traffic and the children. She suggested they restrict where Air B&B are allowed in the City.

Council Member Christiansen asked where she suggested to put the Air B&Bs. Ms. Kite responded St. George and other cities had made restrictions and they should investigate what they had done.

Jerry Kite, resident, commented he agreed with Ms. Kite. He explained Provo restricts Air B&B only where hotels were present. He suggested excluding R1 zoning from short-term rentals. He said this was the zoning they wanted because it was a safe community. He explained their neighbors had rented out their homes and their street had become a hotel. He said this was a threat to his family because of the type of people that used the properties. He shared a story where a woman was kidnapped by people that rented an Airbnb.

Julie Bleazard, resident, commented she had lived in American Fork for six years. She said she

loved her neighborhood but did not like the short-term rentals. She said this scared her because she did not know who was living in these homes. She thanked the Council for investigating this issue. She noted she understood why people needed to rent out their homes. She said it was good they were making an ordinance so the police could act on problems.

Council Member Taylor commented the protection of the quality of life was the Council's job. He noted there was not enough money to hire enough enforcement officers. He said he agreed with what had been discussed and thought they needed to rewrite the ordinance. They needed better enforcement and restrictions before they passed the ordinance.

Council Member Shelton noted they already had an ordinance that addressed short-term rentals. They already had issues enforcing the existing ordinance. He said until they could prove they could enforce the ordinance he was worried about passing more legislation.

Mr. Merrill explained they needed an ordinance to regulate short-term rentals. Council Member Shelton said they needed more details worked out in the ordinance. He suggested they table the item.

Council member Taylor said they needed to decide where they permitted short-term rentals. Council Member Shelton and Christensen agreed.

Council Member Barnes commented he wanted to support personal property rights. He noted this issue affected people's property rights and neighbors. He said they needed to investigate how this would affect the residents and the police force. He noted he had been called by residents that had issues. He said the police needed to be contacted when there were problems. He said they needed to create an ordinance to get experience.

Council Member Carroll commented she had advocated for residents to have Air BnBs. She said she reflected on comments made by residents and rethought her original stance and thought there needed to be more restrictions.

Council Member Shelton moved to table this for a future work session discussion. Council Member Taylor seconded the motion.

Council Member Taylor suggested they schedule time for a longer work session to discuss the issue.

Mr. Blackhurst asked if it was illegal to have an Airbnb in American Fork. Mr. Merrill responded in the negative. He cited the City code and noted it was ambiguous on the topic. Mr. Blackhurst commented tabling the issue would allow this problem to continue for another year.

There was subsequent discussion on the legality of the short-term rentals. Mr. Merrill explained his interpretation of the code. Council Member Carroll stated they needed to table the item.

Council Member Christiansen suggested they hold a special session and pass an ordinance once they had more information. She said they needed some restrictions while they were putting together the ordinance.

Council Member Shelton amended his motion to including bringing this item back to a

special session on May 21, 2019, for action.

Mr. Bunker said they were putting together a packet on the ordinance. Council Member Christiansen suggested they put in a restriction on short-term rentals until they completed the ordinance.

Council Member Taylor suggested they create a moratorium on short-term rentals. Mr. Merrill responded they would have to hold a public hearing. Council Member Shelton asked if this was a good decision. Mr. Merrill responded that this would accomplish what the Council was trying to do.

Mr. Merrill explained the legal ramifications to prohibit people from using Air B&Bs. There was subsequent discussion with Council Member Shelton. Mr. Merrill explained they needed to educate the residents, and this could lead to legal action.

Council Member Barnes commented he rented a home for a large group. He said after they paid the State changed the law, but they were still allowed to use the property. He asked who they would notify if this happened in American Fork. Mr. Merrill responded the solution was to issue license. If there was a complaint, they would have recourse against the owner.

Council Member Shelton amended his motion to bring this item back at the May 28, 2019, City Council meeting. Council Member Taylor seconded the amended motion.

Council Member Shelton clarified that staff would create an ordinance that stated the City's position that short-term rentals were not allowed.

Mr. Blackhurst asked why they were not voting on this now. The Council responded they needed more information before they voted on an ordinance. Mr. Merrill asked if this needed to be discussed by the Planning Commission. Council Member Shelton responded that he wanted the Planning Commission present when they discussed this topic.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	TABLED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

3. Review and action on the approval of an ordinance creating Chapter 05.40 of the city code regulating business licenses for short term rentals.

Council Member Christiansen moved to table action on this item. Council Member Shelton seconded the motion. Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	TABLED [UNANIMOUS]
MOVER:	Barbara Christiansen, Council Member
SECONDER:	Rob Shelton, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

4. Review and action on the approval of a Water Banking Agreement for Willow Glen, LLC.

Council Member Carroll moved to authorize the City to sign the Water Banking Agreement for Water Rights with Willow Glen, LLC. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

5. Review and action of a Reimbursement Agreement for Dig Deep Excavation, LLC.
Council Member Shelton moved to approve the Reimbursement Agreement for Dig Deep Excavation, LLC. Council Member Christiansen seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Barbara Christiansen, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

6. Review and action on granting a public utility easement located at 932 East 700 North to Rocky Mountain Power
Council Member Shelton moved to approve the public utility easement in favor of Rocky Mountain Power located at 932 East 700 North. Council Member Barnes seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

7. Review and action on subdivisions, commercial projects, condominiums, and PUD's including 1) plat approval; 2) method of satisfaction of water rights requirements; 3) posting of an improvement bond or setting of a time frame for improvement installation; and 4) authorization to sign the final plat and acceptance of all dedications to the public and to have the plat recorded.

a. Review and action on an ordinance approving a district framework plan for the Edgewater TOD located in the area of 1155 West 200 South

Council Member Shelton asked if this was the first district framework plan. Mr. Olsen responded in the affirmative. He explained it went through staff review and the Planning Commission. He noted the Planning Commission made two conditions to the plan.

Council Member Taylor moved to adopt Ordinance No. 2019-05-25 approving the district framework plan for the Edgewater TOD located in the area of 1155 West 200 South. Council Member Carroll seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Staci Carroll, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

- b. Review and action on the final plats and ordinance adopting the site plan of Dixie Farms C, D, E and F Flexible Lot PUD project, located in the areas of 900 South 900 West, 1000 West 930 South, 1100 West 930 South, 1000 South 900 West, in the PR-3.0 Planned Residential zone.

Council Member Shelton moved to approve the final plats and Ordinance No. 2019-05-26 adopting the site plan of Dixie Farms C, D, E and F Flexible Lot PUD project, located in the areas of 900 South 900 West, 1000 West 930 South, 1100 West 930 South, 1000 South 900 West and to authorize the mayor and city council to sign the plats and accept the dedications with instructions to the city recorder to withhold recording of the plat subject to all conditions identified in the public record associated with the April 17, 2019 Planning Commission meeting. Council Member Christiansen seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Barbara Christiansen, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

- c. Review and action on the final plat and ordinance adopting the site plan of Roderick Catalyst Phase 1 located in the area of 1500 South 500 East in the PI-1 Planned Industrial and I-1 Industrial zones.

This item was withdrawn at the request of the applicant.

RESULT:	WITHDRAWN
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- d. Review and action on the final plat and an ordinance adopting the site plan of Stonecreek Plat C located in the area of 700 South 290 West in the PR 3.0 Planned Residential zone.

Council Member Shelton moved to approve the final plat and adopt Ordinance No. 2019-05-27 for the site plan of Stonecreek Plat C located in the area of 700 South 290 West in the PR 3.0 Planned Residential zone and to authorize the mayor and City Council to sign the plat and accept the dedications with instructions to the city recorder to withhold recording of the plat and publication of the ordinance subject to all findings and conditions identified in the public record associated with the May 8, 2019 Planning Commission meeting. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

- e. Performance-in-Lieu Agreement with K&P Builders for Mount Timpanogos View Subdivision

Council Member Carroll moved to approve the Performance-in-Lieu Agreement with K&P Builders for Mount Timpanogos View Subdivision and authorize the City to execute the document subject to submission of required water rights and recording of a blanket construction inspection easement. Council Member Barnes seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

8. Review and action on the approval of an ordinance creating Chapter 12.18 of the city code relating to the use of city parks and recreation spaces.

Council Member Carroll moved to adopt Ordinance No. 2019-05-28 creating Chapter 12.18 of the city code relating to the use of city parks and recreation open spaces. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

9. Review and action on the approval of a resolution establishing rules for parks in American Fork City.

Council Member Taylor moved to approve Resolution No. 2019-05-13R establishing rules for parks in American Fork City. Council Member Shelton seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Rob Shelton, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

10. Review and action on approval of a contract for branding/logo services.

Council Member Shelton said it was difficult to spend \$26,000 on this service. He asked what else they would receive from this contract. Mr. Bird responded they would receive the slogan as well as the user guide. This would be branding that would be on American Fork property and the website.

Council Member Shelton asked what they could do if they were not happy with their services. Council Member Taylor said his company bid on this but were higher than Jibe. He said this was a reasonable amount and they had done a good job with Lehi's designs.

Council Member Taylor moved to approve the contract to Jibe Media in the amount of \$26,500 for log and brand development services. Council Member Carroll seconded the motion.

Council Member Barnes asked if the cost only covered the development of the brand. Mr. Bird responded in the affirmative.

Council Member Christiansen asked how essential it was to be done right now. Mr. Bunker responded it was their recommendation to do the rebrand right now. He explained the current logo was difficult to put on all mediums.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Staci Carroll, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

11. Review and action on awarding a Construction Contract for Art Dye Park Pavilion Project
Council Member Carroll asked if this was the same contractor for the rest of the park. Mr. Cooley responded it was the same construction company but a separate contract. He briefly updated the Council on the traffic improvements. Council Member Shelton responded that he appreciated the update.

Council Member Taylor moved to accept the bid submitted by J. Lyne Roberts & Sons, Inc. for the construction of the Art Dye Park Pavilion Project, in the amount of \$373,564.00 and approve the construction contract as presented. Council Member Christiansen seconded the motion.

Council Member Shelton asked if they would include the score towers. Mr. Sensenbaugh responded that he did not currently know the design plans. Council Member Shelton asked they include a design plan.

Mayor Frost asked what was currently planned. Mr. Rykert responded they had some shade and protection. The scorekeeping was wireless. Council Member Shelton asked if there was an intercom system. Mr. Rykert responded in the negative.

Council Member Shelton said he did not like that it was only partially functional. He asked if the rest of the Council was in favor of the current plans.

Council Member Christiansen asked if Mr. Rykert was satisfied. Mr. Rykert responded in the affirmative. He said he had discussed this issue with his staff.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	APPROVED [4 TO 1]
MOVER:	Clark Taylor, Council Member
SECONDER:	Barbara Christiansen, Council Member
AYES:	Kevin Barnes, Staci Carroll, Barbara Christiansen, Clark Taylor
NAYS:	Rob Shelton

12. Review and action on a Contract for Striping Services at various locations throughout the City

Council Member Taylor moved to approve the agreement for striping services as presented and authorize the City to enter into the contract with Allstar Striping LLC. Council Member Christiansen seconded the motion.

Council Member Barnes asked if this was under the Public Works direction. Mr. Sensanbaugher responded in the affirmative.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Barbara Christiansen, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

13. Review and action on a Contract for Concrete Services at various locations throughout the City

Council Member Carroll moved to approve the agreement for concrete services as presented and authorize the City to enter into the contract with Quicksilver Concrete, Inc. Council Member Barnes seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

14. Review and action on the approval of a resolution declaring certain items to be surplus and disposed of.

Council Member Shelton moved to approve Resolution No. 2019-05-14R declaring certain items to be surplus and disposed of. Council Member Carroll seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Staci Carroll, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

15. Presentation and adoption of the City's tentative budget for fiscal year ending June 30, 2020.

Council Member Shelton commented he had asked a lot of questions to Mr. Maurer.

Council Member Shelton moved to approve the fiscal year ending June 30, 2020, tentative budget and set the public hearing for the final fiscal year ending June 30, 2020, budget for Tuesday, June 11, 2019, at 7:00 p.m.

Council Member Shelton asked if could make changes after the public hearing. Mr. Maurer responded they had two weeks to act.

Council Member Barnes seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

16. Review and action on agreement with the Utah Department of Transportation for the Central Corridor Transit Alternatives Analysis.

Council Member Carroll asked if every City was paying the same amount. Mr. Bunker responded Orem and Provo were paying \$10,000 while the rest in the corridor were paying \$6,000. All the participating Cities were paying.

Council Member Carroll moved to approve the Central Corridor Transit Alternatives Analysis agreement with the Utah Department of Transportation in the amount of \$6,000.00. Council Member Barnes seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

17. Consideration and action to enter into a closed session to discuss the character or professional competence of individuals, to discuss pending or reasonably imminent litigation, to discuss the purchase, lease or sale of real property, or to discuss other items described in Utah State Code 52-4-204 and 52-4-205.

Council Member Carroll moved to enter into a closed session at 9:45 p.m. Council Member Christiansen seconded the motion.

It was noted this closed session would be held in the downstairs workroom and the meeting would adjourn from there.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

The City Council entered into a closed session to discuss the professional character and competence of individual(s) and pending or reasonably imminent litigation at 9:52 p.m. Those present included Mayor Frost, Council Member Barnes, Council Member Carroll, Council Member Christiansen, Council Member Shelton and Council Member Taylor. Also present were City Administrator David Bunker, City Civil Attorney Tim Merrill, and City Recorder Terilyn Lurker.

Pending or reasonably imminent litigation was discussed, and audio recorded as required by law. This portion of the closed session ended at 10:02 p.m. The professional character and competence of individuals was then discussed. (See attachment).

Council Member Christiansen moved to return to the regular session at 11:17 p.m. Council Member Shelton seconded the motion. All were in favor.

18. Adjournment

Council Member Taylor moved to adjourn the meeting. Council Member Shelton seconded the motion. All were in favor.

The meeting adjourned at 11:18 p.m.



Terilyn Lurker, City Recorder

**AMERICAN FORK CITY
MAYOR'S AFFIDAVIT
Bradley J. Frost, Mayor**

I, Mayor Bradley J. Frost, do solemnly swear and affirm that a portion of the closed session of the American Fork City Council meeting on Tuesday, May 14, 2019, was to discuss the professional character and competence of individuals.

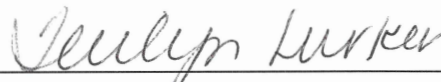


Bradley J. Frost, Mayor

State of Utah
County of Utah

Subscribed and sworn to before me this 15 day of May, 2019.





Signature of Notary Public

My Commission Expires: 2/4/2020